

ADDITIONAL TERMS AND CONDITIONS

1. SUBMISSION OF ESSENTIAL DOCUMENTS ON GEM PORTAL.

(a) The following documents are essential to be uploaded by the Bidder on GeM Portal for considering during Technical Evaluation.

- (i) Establishment Registration Certificate.
- (ii) EPF Registration Certificate.
- (iii) ESI Registration Certificate.
- (iv) GST Registration Certificate.
- (v) PAN Card.
- (vi) Turnover Certificate.

2. PAYMENT OF ARREARS:

(a) Difference in Minimum Wages because of revision by Chief Labour Commissioner (Central) and corresponding EPF, ESI, Bonus and GST would be reimbursed to the Service Provider/ Agency/ Company after conclusion of the awarded contract.

3. **AWARD OF CONTRACT IN CASE OF MULTIPLE L1** : If the Bid results in multiple L1 then the attached weightage would be used to evaluate the best technical specification as per below:-

		Weightage	25 to 75 Lakh Turnover	75 to 1Crore Turnover	1 and above Crore Turnover
1.	CA Certificate for last three Financial Years Average Turnover 3/2022 of the Bidder.	10	4	6	10

		Weightage	4 to 7 Years old	7 to 10 Years old	10 and above years old
2.	Establishment Registration Certificate of in any cities of Sagar, Division i.e in the State of Buyer.	10	4	6	10

		Weightage	25 Lakh to 50 Lakh	50 Lakh to 75 Lakh	75 Lakh and above work order.
3.	Highest value of ongoing work order for Outsourcing of Manpower in Central Govt/ State Govt/PSU of the Bidder	15	5	10	15
		Weightage	4 to 7 Years old	7 to 10 Years old	10 and above years old
4.	EPF Registration of M.P of the Bidder	10	4	6	10

		Weightage	4 to 7 Years old	7 to 10 Years old	10 and above years old
5	ESI Registration of M.P of the Bidder	10	4	6	10

		Weightage	4 to 7 Years of Exp	7 to 10 Years of Exp	10 Years and above
6	Experience of providing Manpower Services of the Bidder in Defence/ Central Government in the State of M.P	10	4	6	10

		Weightage	Above 100 Employees.	Above 200 Employees	Above 300 Employees.
7	EPF/ESI Challan With ECR Last Month	10	4	6	10

		Weightage	Work Award
8	Certificates or award for related work by any Government organization to the Department or Agency/Firm during your's agency/Firm contract period	5	5

		Weightage	ISO Certificate
9	ISO Certificate	5	5

		Weightage	Labour Welfare
10	Labour Welfare Payment Proof	5	5
11	To Be Submitted On Rs.500/- (Rupee Five Hundred Only) Non Judicial Stamp Paper For Non Black Listed Certificate	5	5
12	Certificate of Satisfactory Compliance during Covid-19, for the required services category	5	5

Note:

- In case of evaluation if more than one Bidder gets same points, Department's feedback given of the said Bidder company/institution above will be considered, for which the decision of the committee will be final.

5. The Bidder should submit the reference of the work being done in 2 such Central Govt . Department / Institutions in Madhya Pradesh which was operated in the past or is being operated at present, the name of the department and the name of the person referred to and telephone no.

6. Bid Specific Additional Terms and Conditions.

- (a) Buyer uploaded ATC document.
- (b) For fulfilling the experience criteria any one of the following documents may be considered as valid proof for meeting the experience criteria.
- (c) Purchase order Copy alongwith Invoice (s) with self-certification by the bidder that supplies against the invoices have been executed.
- (d) Execution certificate by client with order value.
- (e) Any other document in support of order execution like Third Party Inspection release note, etc.

7. **OPTION CLAUSE:** The purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 % of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity by up to 25 % of the contracted quantity during the currency of the contract at the contracted rates. Bidders are bound to accept the orders accordingly.

8. Successful Bidder can submit the Performance Security in the form of Fixed Deposit Receipt also (besides PBG which is allowed as per GeM GTC). FDR should be made out or pledged in the name of (Name of the Seller). The bank should certify on it that the deposit can be withdrawn only on the demand or with the sanction of the pledge. For release of Security Deposit, the FDR will be released in favour of bidder by the buyer after making endorsement on the back of the FDR duly signed and stamped along with covering letter. Successful Bidder has to upload scanned copy of the (FDR documents in place of PBG and has to ensure delivery of hard copy of Original FDR to the Buyer within 15 days of award of contract.

Disclaimer

The additional terms and conditions have been incorporated by the Buyer after approval of the Competent Authority in [Buyer Organization. Buyer organization is solely responsible for the impact of these clauses on the bidding process, its outcome and consequences thereof including any eccentricity / restriction arising in the bidding process due to these ATCs and due to modification of technical specification and / or terms and conditions governing the bid. Any clause incorporated by the Buyer such as demanding Tender Sample, incorporating any clause against the MSME policy and Preference to make in India Policy, mandating any Brand names of Foreign Certification, changing the default time period for Acceptance of material or payment timeline governed by OM of Department of Expenditure shall be null and void and would not be considered part of bid. Further any reference of conditions published on any external site or reference to external documents / clause shall also be null and void. If any seller has any objection/ grievance against the additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller within 2 days of bid publication on GeM. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

